

#	Case Name	
1	Cirks Construction Inc. vs. Brian Record 2025-01503586	Motion to Be Relieved as Counsel of Record The motion by Jason Barth of Barth Law, PC, to be relieved as counsel of record for Brian Record dba Advanced Mechanical Specialties, is granted. The Court notes that the proposed order submitted as ROA 67 does not include the client's last known address and telephone number under section 6. Counsel shall submit a revised, proposed order with section 6 completed in its entirety. Upon the signing of the revised order, counsel shall serve the signed order on the client and all parties that have appeared. Jason Barth of Barth Law, PC will be relieved as counsel of record for Brian Record dba Advanced Mechanical Specialties, effective upon the filing of the proof of service of the signed order upon the client and all parties. Barth Law, PC is ordered to give notice of the ruling.
2	Corona vs. Discount Courier Services, Inc. 2025-01518743	1. Motion to Compel Arbitration 2. Case Management Conference Continued to 10/05/2026
3	Doe vs. Boys & Girls Club Of Central New Mexico 2022-01296308	Motion to Dismiss Complaint Under the Doctrine of Forum Non Conveniens Defendant Dominic Yannoni's motion to dismiss this action on the ground of forum non conveniens is denied. Facts Plaintiff, who was born in 1976, alleges that starting when he was about 12, he was groomed and sexually abused by Dominic Yannoni, the Director of The Boys & Girls Club of Central New Mexico ("Boys & Girls Club NM"). Plaintiff alleges abuse and grooming behavior in New Mexico and leading up to trips to California but specifically for this California lawsuit, alleges that Yannoni arranged at least three

trips to Disneyland starting in 1990, during which visits Yannoni sexually abused Plaintiff. [First Amended Complaint (“FAC”), ¶¶ 1 at fn. 1, 18-35 and ¶¶ 35-36.] This has been consistent since the beginning of the case. [See Complaint (ROA #2), ¶¶ 1 at fn. 1, 19-34, 35-36 .]

In addition to Yannoni, Plaintiff sued Boy & Girls Club NM and Boys & Girls Club of America, Inc. (“Boys & Girls Club National”). [FAC, Complaint.] Boys & Girls Club NM and Boys & Girls Club National responded to Plaintiff’s complaint before Yannoni did. Boys & Girls Club National successfully moved to quash for lack of personal jurisdiction. [4/6/23 Motion to Quash (ROA #69); 4/23/24 Minute Order (“ROA #239).]

Boys & Girls Club NM, too, moved to quash, but that motion was denied. [2/2/23 Motion to Quash (ROA #21); 7/20/23 Minute Order (ROA #108).] Boys & Girls Club NM also alternatively moved to dismiss for forum non conveniens; this motion to was denied. [*Id.*]

After this, on 9/21/23, Defendant Yannoni appeared in this action by filing a demurrer and motion to strike to Plaintiff’s complaint. [ROA ## 143, 144.] The demurrer was sustained in part and the motion to strike was granted in part. [4/15/24 Minute Order (ROA # 238).]

Soon after that Plaintiff appealed the order granting Boys & Girls Club National’s motion to quash. [5/13/25 Notice of Appeal (ROA #246).] The stay was lifted on 1/27/25 and Plaintiff ordered to file his FAC. [1/27/25 Minute Order (ROA #275).] Plaintiff did so and Defendant Yannoni filed his answer on 3/5/25. [ROA ## 277, 279.]

The court’s file shows no further activity until almost a year later, when Defendant Yannoni filed the pending motion to dismiss on 1/23/26. [ROA #281.]

Legal Standard and Discussion

“When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.” Code Civ. Proc. § 410.30(a).

Defendant’s Motion Is Untimely

A party must bring such a motion to enforce a forum selection clause within a reasonable time. *Global Financial Distributors Inc. v. Superior Court* (2019) 35 Cal.App.5th 179, 193. *See also Trident Labs, Inc. v. Merrill Lynch Commercial Finance Corp.* (2011) 200

Cal.App.4th 147, 155, 132 Cal.Rptr.3d 551 (although “[s]ection 410.30 does *not* say that the motion may be brought ‘at any time,’ ” where “no limits are stated, a reasonableness standard is necessarily inferred”)(reversing trial court's grant of motion to dismiss based on forum selection clause, concluding defendant's litigation of plaintiff's claim for 19 months before filing motion was unreasonable).

Here, Defendant has filed his motion roughly *two and a half years* after first appearing in this action. He filed it a year after the stay was lifted. Nor is the motion based on information developed since Yannoni first responded to Plaintiff's complaint. The information in the interrogatory response relied on by Defendant Yannoni is consistent with and tracks the allegations in Plaintiff's original complaint. Indeed, it was on these same facts that the Boys & Girls Club NM brought its prior motion to dismiss for forum non conveniens.

In short, Defendant Yannoni's motion to dismiss was not brought within a reasonable time and is thus untimely.

Merits

Forum non conveniens is an equitable doctrine invoking the court's discretionary power and seeking a determination that action may more appropriately and justly be tried elsewhere. *See Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751.

“In assessing a forum non conveniens motion the trial court looks first to whether the alternative forum is a suitable place for trial. [Citation.] If it is, then the court looks to the private interests of the litigants and the public interest in keeping the case in California. [Citation.]” *Century Indemnity Co. v. Bank of America* (1997) 58 Cal.App.4th 408, 412 (citing *Stangvik, supra*, 54 Cal.3d 744).

Only after the trial court reaches the conclusion that a suitable alternate forum exists, should it consider whether the benefits of the proposed alternative forum outweigh the reasons for keeping the litigation in California. *Investors Equity Life Holding Co. v. Schmidt* (2015) 233 Cal.App.4th 1363, 1368.

An alternative forum is “suitable” if it has *jurisdiction* and an action in that forum will not be barred by the *statute of limitations*. *Guimei v. General Elec. Co.* (2009) 172 Cal.App.4th 689, 696; *Chong v. Sup.Ct. (HBZ Finance Ltd.)* (1997) 58 Cal.App.4th 1032, 1036-1037; see *Investors Equity Life Holding Co. v. Schmidt, supra*, 233 Cal.App.4th at 1368; *Wang v. Fang* (2021) 59 Cal.App.5th 907, 920, (non conveniens motion should be granted unless action in the foreign

venue “*would be barred*, as opposed to *might be barred*” by statute of limitations (emphasis in original)).

Defendant bears the burden of proof of establishing that: (1) a suitable alternative forum is available, and (2) the balance of public and private interests factors makes it just that the litigation proceed in the alternative forum. *Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751. The inquiry is not whether some other state or country provides a better forum than does California, but whether California is a seriously inconvenient forum. See *Ford Motor Co. v. Insurance Co. of North America* (1995) 35 Cal.App.4th 604, 611. In *Ford Motor Co.* the court explained that: “Unless the balance is strongly in favor of defendant, the plaintiff’s choice of forum should rarely be disturbed.” *Id.*, at 610 to 611, and *Morris v. Agfa Corp.* (2006) 144 Cal.App.4th 1452, 1465.

For his motion, Defendant Yannoni points to Plaintiff’s interrogatory response, which tracks the allegations in is complaint and FAC, describing actions by Defendant Yannoni, in New Mexico and California, that are the facts in support of Plaintiff’s claims of sexual molestation by Defendant Yannoni. [See Motion MPA at 3-8.]

Defendant argues New Mexico is a suitable forum because, he argues, most of the alleged acts and omissions giving rise to liability and damages theories alleged in the FAC occurred in New Mexico.

But as Plaintiff notes in his opposition, while the allegations of what was done to him in New Mexico provide important context, his claims in this action are based upon acts of sexual abuse that occurred in California. [Opp. (ROA #302) at 4-5.]

Moreover, Defendant has made no effort to show that the action is not barred by New Mexico’s statute of limitations. This is Defendant’s burden. *Stangvik, supra*, 54 Cal.3d at 751.

Section 37-1-30 of the New Mexico Statutes provides as follows:

A. An action for damages based on personal injury caused by childhood sexual abuse shall be commenced by a person before the latest of the following dates:

(1) the first instant of the person’s twenty-fourth birthday;
or (2) three years from the date that a person first disclosed the person’s childhood sexual abuse to a licensed medical or mental health care provider in the context of receiving health care from the provider.

At the time of filing his complaint, Plaintiff was 46 years old. Plaintiff disclosed his childhood sexual abuse to a licensed medical provider

		more than three years prior to filing his Complaint in this action. [Opp. at 9.] Nothing has materially changed since the court denied the prior motion to dismiss for forum non conveniens. Defendant Yannoni relies on substantially the same facts and arguments previously weighed by the court. Indeed, the main change is that now this action has been litigated in this court for over three years. Based on all of the above, Defendant Yannoni's motion to dismiss is denied. Yannoni is to give notice.
4	First Foundation Inc. vs. Keller 2025-01493220	Motions to Compel Court will hear from counsel
5	Le vs. Dovich 2023-01342508	Motion to Compel Deposition (Oral or Written) On plaintiff Vy Le's motion to compel compelling defendant Joseph Dovich to appear for deposition, the court will hear from the parties about the pending trial date and its impact on Plaintiff's motion. Code Civ. Proc. §2024.020(a). The court also notes there is no proof of service for the opposition filed by Defendant.
6	Madar vs. Nikkiso America, Inc. 2025-01519836	Motion to Be Relieved as Counsel of Record The motion by Stalwart Law Group, APC, to be relieved as counsel of record for Michelle Madar, is granted. The Court finds withdrawal of counsel is appropriate, here, because of the breakdown in the attorney-client relationship that would make it unreasonably difficult for counsel of record to continue its representation. The Rules of Professional Conduct, rule 2.1, states: "In representing a client, a lawyer shall exercise independent professional judgment and render candid advice." The client's profound unhappiness with her counsel of record exercising its independent professional judgment, as required by Rule 2.1, confirms that relief is appropriate. Upon the signing of the order, counsel shall serve the signed order on the client and all parties that have appeared. Stalwart Law Group,